

The Court also finds Defendant's motion under Section 473.5 to vacate the default judgment is untimely. The notice of a motion under Section 473.5 "shall be served and filed within a *reasonable* time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against the party; or (ii) 180 days after service on the party of a written notice that the default or default judgment has been entered." (Code Civ. Proc., § 473.5, subd. (a).) The motion "shall be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect." (Code Civ. Proc., § 473.5, subd. (b).) Plaintiff's declaration submitted in opposition to Defendant's motion states that on December 11, 2025, Plaintiff mailed correspondence that notified Defendant that judgment had been entered in this case. (D'Anna Decl., ¶ 10, Exh. 2.) The letter is dated more than 180 days prior to the filing of the present motion. Plaintiff's supporting declaration also states that Defendant contacted Plaintiff to discuss settlement in March 2025 and April 2026. (D'Anna Decl., ¶¶ 9, 11.) Further, Defendant's declaration does not expressly state that his lack of actual notice in time to defend the action was not caused by his avoidance of service or inexcusable neglect. Based on the competing declarations from Plaintiff and by Defendant, the Court does not find Defendant acted within a reasonable time to file and serve his motion within a reasonable time after written notice of the judgment in December 2025, and his declaration does not establish that his lack of actual notice in time to defend that action was not caused by his avoidance of service or inexcusable neglect.

Motion to Stay Enforcement of Judgment

Defendant's motion to stay execution of judgment is **DENIED**. The request for stay of execution of judgment under Code of Civil Procedure section 918 is untimely and Defendant has not cited any other applicable legal authority.

25CV-00469

Wells Fargo Bank, N.A. vs. Matthew Bain

Motion for Summary Judgment

The unopposed motion for summary judgment or in the alternative summary adjudication by plaintiff Wells Fargo Bank, N.A., is **GRANTED**. The Court grants Plaintiff's request to take judicial notice of the summons, complaint, and proof of service of summons and complaint filed in this case. Upon consideration of all the evidence set forth in the moving papers, particularly the declaration of Loan Workout Specialist Chad Ray authenticating business records related to this action, the Court finds that there is no triable issue of material fact and Plaintiff is entitled to judgment as a matter of law. Plaintiff has proven each element of its causes of action for breach of contract. The burden shifts to Defendant to show the existence of one or more triable issues of material fact. (Code Civ. Proc., § 437c, subd. (p)(1).) By not opposing the motion, Defendant has failed to meet his burden.

Judgment shall be entered for Plaintiff and against Defendant Matthew Bain. The Court will sign the proposed order lodged with the moving papers.

The case management conference scheduled for August 14, 2026, is vacated.